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25-CIV-02345

CARRIE WONG VS. ANNIE MACH, DOCTOR OF DENTAL SUR, ET AL.

LINE 3

CARRIE WONG
ANNIE MACH

PRO PER
MICHAEL K. PAZDERNIK

PLAINTIFF CARRIE WONG'S MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT

TENTATIVE RULING:

Plaintiff Carrie Wong's Motion for Leave to File Third Amended Complaint is GRANTED.

The initial Complaint was filed on April 2, 2025. It was quickly amended to substitute Defendant Bayhill Dental Care, Inc. ("Bayhill") for a prior defendant named as "Bayhill Dental." (See Apr. 25, 2025, ¶¶ 1–2.) After Plaintiff Carrie Wong began representing herself in this action, she filed the Second Amended Complaint ("SAC") on July 25, 2025, now referring to Bayhill as the fictitious business name of Luisa Diaz and adding three causes of action for misrepresentation and UCL violations. (Jul. 25, 2025, ¶¶ 2, 10–14, 19–23, 33–36.) Because Wong did not seek or receive leave of court to do so, the Court struck the SAC *sua sponte*. (Sep. 10, 2025 Order.) Wong then filed the instant motion seeking leave to file a proposed third amended complaint.

A court may, in its discretion, allow amendment to any pleading upon any terms as may be just after notice to the adverse party. (Code of Civ. Proc., § 473, subd. (a); see *id.*, at § 576.) Motions for leave to amend are directed to the sound discretion of the judge, but that discretion must be "exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) "California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Douglas v. Superior Ct.* (1989) 215 Cal. App. 3d 155, 158.)

If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) However, "even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial." (*Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)

Bayhill, along with Defendant Annie Mach who joins in Bayhill's opposition, contends that the new allegations and causes of action to be added by the proposed amended complaint are not "new or different facts," citing *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468. *Herr* is a motion for reconsideration case. Instead, when a party moves to amend based upon facts known from the outset of the case, the question is whether or not the moving party lacked diligence in bringing the motion and what effect any delay will have on the defendants. (*Landis v. Superior Court* (1965) 232 Cal.App.2d 548, 557.) And, when the motion is made "at a stage in the proceeding where pretrial or trial had not been set

... it seems unreasonable to deny a party the right to amend where the only apparent hardship to the defendants is that they will have to defend.” (*Id.*).

Here, the primary substance of the proposed amended complaint was set forth in the SAC, filed just three months after the action was filed. Wong filed the instant motion less than two months after the SAC was stricken. No trial is set, and no defendant has taken any meaningful action except to oppose this motion. There is hardly any delay to excuse, there is no identified prejudice to any defendant, and it does not appear Wong lacked diligence in bringing the motion.

Bayhill’s only other objection to amendment is the motion’s purported failure to comply with the California Rules of Court. Those rules require a motion to amend must “(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.” (Cal. Rules of Court, rule 3.1324(a).) The motion must also be accompanied by a declaration specifying “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (*Id.*, at rule 3.1324(b).)

The motion identifies the changes made in the proposed complaint from as compared to the prior, unstricken FAC by page and line number. (Nov. 7, 2025 Motion, p. 3.) While the statement of changes is quite unspecific, the lack of specificity is understandable given the substantial reformatting and renumbering of the general allegations and the interspersal of new causes of action. (See Apr. 25, 2025 First Amended Complaint, *passim*; Nov. 7, 2025 Declaration of Carrie Wong, exh. A, *passim*.) The motion substantially complies with rule 3.1324(a).

The declaration accompanying the motion also states the effect of the amendment and why it is necessary and proper. (Nov. 7, 2025 Declaration of Carrie Wong, pp. 1–2.) It is also supplemented by the declaration offered in reply with further details and further specification of when Wong discovered the facts underlying amendment and why the motion was filed at the time it was, the absence of the declaration’s intended attachments notwithstanding. (Jul. 20, 2026 Declaration of Carrie Wong, pp. 1–3.) This is sufficient to substantially comply with rule 3.1324(b) under the circumstances.

Accordingly, leave to amend is granted. The proposed third amended complaint is not deemed filed by this order **and must be separately filed within ten days of entry of the formal order**. Failure to do so may result in an *ex parte* application by defendants for dismissal.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court, which will prepare a formal order.

02:00 PM

25-CIV-02951 ANNA MOLINA VILLALOBOS, ET AL. VS. JING LI, ET AL.

LINE 4

ANNA MOLINA VILLALOBOS
JING LI

DESMOND B. TUCK
JOSHUA F. GONZALES

DEFENDANTS JING LI AND YING LI'S MOTION FOR PROTECTIVE ORDER

TENTATIVE RULING:

Defendants Jing Li and Ying Li seek an order protecting them from responding to requests for admission ("RFAs") propounded by Plaintiff Anna Villalobos in excess of the statutory limit of 35 RFAs that may be propounded without a declaration justifying additional discovery.

Defendants' Motion for a Protective Order is GRANTED.

Plaintiff's request for judicial notice of public documents related to this matter is GRANTED.

Under Code of Civil Procedure § 2033.030(a), a party may serve no more than 35 RFAs unless the excess RFAs are supported by a declaration of necessity under Code of Civil Procedure § 2033.050 that, among other things, explains why additional discovery is justified by the complexity or quantity of issues in the case. (See Code Civ. Proc., §§ 2033.030, subds. (a)-(b), 2033.040, subd. (a), 2033.050.)

Code of Civil Procedure § 2033.050 sets forth the substance of what must be included in a declaration justifying additional discovery, including the following suggested language:

This number of requests for admission is warranted under Section 2033.040 of the Code of Civil Procedure because _____. (Here state the reasons why the complexity or the quantity of issues in the instant lawsuit warrant this number of requests for admission.)

Here, Plaintiff's section 2033.050 declaration states, in relevant part:

This number of requests is warranted under section 2033.040 of the Code of Civil Procedure because the issues in this case involve matters relating to complex boundary and construction dispute. Defendant cannot properly prepare for deposition or trial without obtaining written responses to these Requests for Admission. I am informed and believe that unless written responses to these Requests for Admission are received before further discovery is conducted, substantial expense would be incurred in attempting to solicit discoverable facts by deposition.

(Gonzales Decl. Ex. C, ¶ 5 and Ex. D, ¶ 5.)

Plaintiffs argue that the declaration adequately justifies additional discovery and that a party challenging the sufficiency of the declaration would "essentially need to show that the Declarant was lying about the need for additional RFAs." (Oppo., at p. 10:6-8.) Plaintiff cites no case law for that proposition.

Plaintiffs effectively parrot the statutory language governing requests for additional discovery and make a conclusory statement that the discovery is necessary. California courts consistently reject this approach, requiring factual specifications rather than boilerplate recitations of statutory language across all discovery contexts. (See, e.g., *People ex rel. Harris v. Sarpas* (2014) 225 Cal.App.4th 1539 [finding declaration did not support oppressive and duplicative interrogatories]; *Liberty Mut. Ins. Co. v. Superior*
